

TEAMTHRIVE PRIVACY POLICY

Effective Date: [Effective Date] | Last Updated: [Date]

1. Introduction

This Privacy Policy explains how TeamThrive ("TeamThrive," "we," "our," or "us"), a product operated by [TeamThrive Legal Entity Name], a [entity type] organized under the laws of [State/Country], with its principal place of business at [Address] ("TeamThrive," "we," "our," or "us") collects, uses, shares, and protects personal data in connection with the TeamThrive mobile applications, the TeamThrive website at teamthrive.com, and all related features, content, and services (collectively, the "Platform"). We have designed this Policy to meet the requirements of, among other laws, the EU General Data Protection Regulation (GDPR), the UK GDPR and Data Protection Act 2018, the Children's Online Privacy Protection Act (COPPA) in the United States, and applicable United States state privacy laws including the California Consumer Privacy Act as amended (CCPA/CPRA). Because TeamThrive is a service likely to be accessed by children, we apply heightened protections to children's data by design and by default.

This Policy uses "personal data" and "personal information" interchangeably to mean information that identifies or relates to an identifiable individual.

2. Controller and Contact Details

For most processing described here, the data controller is [TeamThrive Legal Entity Name, Address]. Where a club, team, or organization independently determines the purposes and means of processing athlete data on the Platform, that club or organization may act as a separate controller or joint controller, and its own privacy notice will also apply. [Confirm controller mapping; see drafting notes.]

Contact: [privacy@teamthrive.com]. Data Protection Officer (if appointed): [DPO contact]. EU Representative under GDPR Article 27: [EU Representative name and address]. UK Representative under UK GDPR Article 27: [UK Representative name and address].

3. The Personal Data We Collect

Depending on how the Platform is used, we may collect the following categories of personal data:

- (a) Account and contact data, such as name, email address, phone number, role (parent, athlete, coach, club administrator), and login credentials.
- (b) Athlete profile data, such as the athlete's name, date of birth or age, sport, position, team or club, grade or graduation year, height, weight, performance statistics, and similar information provided by a parent, guardian, athlete, coach, or club.
- (c) Photographs and video uploaded to athlete profiles or shared on the Platform.
- (d) Schedule, roster, attendance, and team communication data.
- (e) Recruitment-related data that an account holder chooses to make visible to coaches, scouts, or college programs through recruitment features.
- (f) Device, log, and usage data, such as device identifiers, IP address, app interactions, and diagnostic data, collected as described in our Cookie and Tracking Technologies Policy.

(g) Payment data, if you purchase paid features. [Confirm whether payment data is processed by a third-party processor and whether TeamThrive receives any of it.]

(h) Communications you send to us, such as support requests and reports of misuse.

Sensitive and special-category data. We do not request special-category data (such as health or injury information or biometric data) unless a feature you choose to use requires it. If any feature involves health, injury, or biometric data, we will collect it only with your explicit consent and only as needed for that feature. [Confirm whether any health, injury, or biometric or facial-recognition processing occurs; if so, additional safeguards and notices are required.]

4. How and Why We Use Personal Data (Purposes and Legal Bases)

We use personal data to create and administer accounts; to provide athlete profiles, scheduling, roster management, communications, and recruitment features you enable; to keep the Platform safe and secure and to protect children; to provide support; to comply with law; and, where permitted, to improve the Platform. Under the GDPR and UK GDPR, we rely on the following legal bases:

(a) Performance of a contract, to provide the Platform to the account holder and to deliver requested features.

(b) Consent, including verifiable parental or guardian consent for the processing of a minor's data, for uploading and using photographs and video of a minor, for enabling recruitment visibility of a minor, and for any optional marketing. Consent may be withdrawn at any time, without affecting processing already carried out.

(c) Legitimate interests, such as securing the Platform, preventing abuse and protecting users (especially children), and limited product improvement, where those interests are not overridden by the individual's rights. Where the data subject is a child, we give particular weight to the child's interests.

(d) Compliance with legal obligations, including child-safety, record-keeping, and lawful-request obligations.

5. Children's Data

Protecting children is central to how the Platform is built. Only athletes aged thirteen (13) and older may directly access the Platform, and only with verifiable parental or guardian consent, and their direct access is limited to their own profile and schedule. A profile for an athlete under thirteen (13) may exist only where created and managed by a parent or legal guardian (or by a club or coach acting with documented parental consent).

For all minors, we obtain verifiable parental or legal guardian consent before knowingly collecting or processing the minor's personal data, in line with COPPA in the United States and Article 8 of the GDPR and UK GDPR. Because the digital age of consent varies across European countries (between 13 and 16), we obtain parental or guardian consent for every minor, which satisfies these requirements across jurisdictions. Parents and guardians may review their child's information, request its correction or deletion, refuse further collection, and withdraw consent, by contacting [privacy@teamthrive.com] or using in-Platform controls.

We apply high-privacy defaults for children. Recruitment visibility and any public or extended sharing of a minor's profile are off by default and may be enabled only with verifiable parental or guardian consent. We do not serve behavioral or targeted advertising to children, we do not condition a child's participation on collecting more data than is reasonably necessary, and we minimize the data we collect about children.

6. How We Share Personal Data

We do not sell personal data. We share personal data only as follows:

- (a) With clubs, teams, coaches, and organizations associated with an athlete, as needed to provide team and roster features.
- (b) With coaches, scouts, or college programs, only where an account holder has enabled recruitment visibility and, for a minor, only with verifiable parental or guardian consent.
- (c) With service providers and processors who act on our instructions, such as cloud hosting, analytics, and our software developer, under written agreements requiring appropriate safeguards. [Identify the developer and key sub-processors and maintain a current list.]
- (d) With the operators of the Apple App Store and Google Play, as part of app distribution.
- (e) Where required by law, to protect our rights or the safety of users, or in connection with a corporate transaction, subject to appropriate safeguards.

7. International Data Transfers

The Platform may involve the transfer of personal data between the United States, the European Economic Area, the United Kingdom, and other countries, including because our software developer is based in Europe. Where personal data is transferred out of the EEA or the UK to a country without an adequacy decision, we use an appropriate transfer mechanism, such as the European Commission Standard Contractual Clauses, the UK International Data Transfer Addendum, or, where applicable, certification under the EU-US and UK extensions of the Data Privacy Framework. [Confirm data flows, storage locations, and the transfer mechanism actually used.]

8. Data Retention

We retain personal data only as long as necessary for the purposes described in this Policy, to provide the Platform to the account holder, to comply with legal obligations, and to resolve disputes and enforce agreements. When a profile or account is deleted, we delete or anonymize the associated personal data within a reasonable period, except for limited backup copies and records we are required or permitted to keep. [Adopt and reference a written retention schedule.]

9. Your Rights

Subject to applicable law, you have rights regarding your personal data. Under the GDPR and UK GDPR, these include the rights of access, rectification, erasure, restriction of processing, data portability, and objection, the right to withdraw consent, and the right to lodge a complaint with a supervisory authority (in the EEA, your local data protection authority; in the UK, the Information Commissioner's Office).

Under the CCPA/CPRA and similar United States state laws, California and other eligible residents have the rights to know, access, correct, and delete personal information, to opt out of the sale or sharing of personal information and of certain targeted advertising, and to limit the use of sensitive personal information, and the right not to be discriminated against for exercising these rights. We do not sell or share personal information as those terms are defined under California law, and we do not knowingly sell or share the personal information of consumers under sixteen (16). [Confirm.] To exercise rights, contact [privacy@teamthrive.com]. For a minor, a parent or legal guardian may exercise these rights on the minor's behalf. We will verify requests before acting and will not discriminate against you for exercising your rights.

10. Security

We implement appropriate technical and organizational measures designed to protect personal data, including encryption in transit, access controls, and authentication safeguards. No system is completely secure, and we cannot guarantee absolute security. We maintain procedures to respond to suspected data breaches as required by applicable law.

11. Automated Decision-Making

[If recruitment, matching, or ranking features use automated processing that produces legal or similarly significant effects, disclose it here and address GDPR Article 22 safeguards. If no such processing occurs, state that we do not engage in automated decision-making producing legal or similarly significant effects.]

12. Changes to This Policy

We may update this Policy from time to time. We will post the updated Policy with a new effective date and, where required, obtain renewed consent or provide additional notice.

13. Contact

To contact us about privacy, email [privacy@teamthrive.com] or write to [TeamThrive Legal Entity Name, Address].